

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF UVAROV AND OTHERS v. RUSSIA

(Applications nos. 28146/20 and 9 others –
see appended list)

JUDGMENT

STRASBOURG

9 February 2023

This judgment is final but it may be subject to editorial revision.



In the case of Uvarov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 19 January 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. On the different dates, the applicants were taken to police stations as administrative suspects of offences related to public events. They were subsequently administratively convicted for participation in different public events in Moscow.

5. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention.

8. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, and *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018), and that the use of the escort measure be properly documented (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017, and *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019). The authorities' failure to comply with those requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, *Kalyapin*, cited above, §§ 76-79, and *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).

9. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017), and having taken into account the issue of compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

10. It discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by Russian law. In particular, the applicants were taken to the police station as administrative suspects, whereas there was no evidence or assessment that it was impracticable, on the spot, to compile the offence records and to achieve the objectives set out in the Code of Administrative Offences (CAO), that is to establish the suspects' identity (*Korneyeva*, cited above, §§ 34-36). It concludes that the national authorities failed to comply with the applicable rules of domestic procedure and considers that the applicants' escorting, arrest and detention were not "in accordance with a procedure prescribed by law".

11. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the CAO, *Frumkin v. Russia*, no. 74568/12, §§ 159-67, 5 January 2016, related to the impossibility for the applicant to question as witnesses police officers on whose statements his conviction was based, *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, related to disproportionate measures taken by the authorities against participants of solo manifestations, *Kasparov and Others v. Russia,* no. 21613/07, §§ 84-97, 3 October 2013, and *Frumkin*, cited above, §§ 102-42, concerning disproportionate measures taken by the authorities against participants of public assemblies).

IV. REMAINING COMPLAINTS

14. Some applicants also raised other complaints under various Articles of the Convention.

15. The Court has examined the applications and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

16. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

17. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

18. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], nos. 1253/04 and 2 others, § 96, 11 December 2014, and, as a recent example, *Akhtyamov and Others v. Russia* [Committee], nos. 17105/18 and 8 others, §§ 15-16, 10 October 2022), the Court considers it reasonable to award to each of the applicants 3,900 euros (EUR) in respect of pecuniary and non-pecuniary damage, and costs and expenses, plus any tax that may be chargeable on that amount to the applicants.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible and the remainder of the applications inadmissible;

3. *Holds* that these complaints disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay each of the applicants, within three months, EUR 3,900 (three thousand and nine hundred euros), in respect of pecuniary and non-pecuniary damage, and costs and expenses, plus any tax that may be chargeable on that amount to them, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 9 February 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end of unauthorised detention	Specific defects	Public event, Administrative conviction, penalty imposed, Date of appeal	Other complaints under well-established case-law
1.	28146/20 26/06/2020	**Aleksandr Vitalyevich UVAROV** 1974 Memorial Human Rights Centre	From 5.30 to 09.50 p.m. on 10/08/2019	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO. Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art 27.5(1)-(4) CAO) (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Manifestation for fair elections to Mosgorduma, on 10/08/2019. Art. 20.2 § 5 of CAO, fine of RUB 15,000; Moscow City Court, 28/10/2019.	Art. 6 (1) and Art. 6 (3) (d) - unfair trial in view of restrictions on the right to examine witnesses – Domestic court denied the applicant's motion to examine the witness, a police officer, on whose written statements his conviction was based. Art. 11 (2) -disproportionate measures against participants of peaceful public assemblies.
2.	29230/20 14/07/2020	**Aleksandr Vladimirovich CHERKASOV** 1966 Memorial Human Rights Centre	From 3.10 p.m. to 5.25 p.m. on 15/07/2019	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO.	Manifestation in commemoration of N. Estemirova, (three people participating in total), on 15/07/2019. Art. 20.2 § 5 of CAO, fine of RUB 10,000; Moscow City Court, 18/10/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings. Art. 11 (2) - disproportionate measures against participants of public assemblies.

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end of unauthorised detention	Specific defects	Public event, Administrative conviction, penalty imposed, Date of appeal	Other complaints under well-established case-law
3.	29848/20 09/07/2020	**Ivan Petrovich RYGAYEV** 1975 Memorial Human Rights Centre	From 00.50 p.m. to 09.40 p.m. on 12/06/2019	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO. Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; *Tsvetkova and Others*, cited above, §§ 121-22). The applicant was detained in the police van for more than two hours, without reason, before being brought to the police station in order to compile a record of administrative offence.	Manifestation in support of the journalist I. Golunov,on 12/06/2019. Art. 20.2 § 6.1 of CAO, fine of RUB 10,000; Moscow City Court, 22/10/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings. Art. 6 (1) and Art. 6 (3) (d) - unfair trial in view of restrictions on the right to examine witnesses – Domestic court denied the applicant's motion to examine the witness, a police officer, on whose written statements his conviction was based. Art. 11 (2) -disproportionate measures against participants of peaceful public assemblies.
4.	32723/20 15/07/2020	**Maksim Leonidovich FILIPPOV** 2000 Yelanchik Oleg Aleksandrovich	From 9.05 p.m. on 27/07/2019 to 01.00 p.m. on 29/07/2019	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO. Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation for fair elections to Mosgorduma, on 27/07/2019, Art. 20.2 § 6.1 of CAO, fine of RUB 15,000, Moscow City Court 18/11/2019.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings. Art. 11 (2) - disproportionate measures against participants of public assemblies.

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end of unauthorised detention	Specific defects	Public event, Administrative conviction, penalty imposed, Date of appeal	Other complaints under well-established case-law
5.	32751/20 14/07/2020	**Sergey Vyacheslavovich ABANICHEV** 1997 Sirosh Fedor Yevgenyevich	From 2.00 to 4.26 p.m. on 05/12/2019	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO. The applicant was taken to the police station as administrative suspect, in order "to draw administrative offence record" more than five months after the events at issue.	Manifestation for fair elections to Mosgorduma, on 27/07/2019, Art. 20.2 § 6.1 of CAO, administrative detention of 15 days; Moscow City Court, 14/01/2020.	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings.
6.	37583/20 18/08/2020	**Maksim Pavlovich OLENEV** 1996 Memorial Human Rights Centre	From 8.45 p.m. on 27/07/2019 to 01.30 p.m. on 29/07/2019	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO. No written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev*, cited above, § 21). Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation for fair elections to Mosgorduma, on 27/07/2019, Art. 20.2 § 6.1 of CAO, fine of RUB 15,000, Moscow City Court, 04/12/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings. Art. 11 (2) - disproportionate measures against participants of public assemblies.
7.	38185/20 14/06/2020	**Yegor Sergeyevich LESNYKH** 1984	From 8.20. p.m. on 27/07/2019 to 8.30 p.m. on 29/07/2019	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO. Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation for fair elections to Mosgorduma, on 27/07/2019, Art. 20.2 § 6.1 of CAO, fine of RUB 10,000, Moscow City Court, 10/10/2019	Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings. Art. 11 (2) - disproportionate measures against participants of public assemblies.

No.	Application no. Date of introduction	Applicant's name Year of birth Representative's name	Start and end of unauthorised detention	Specific defects	Public event, Administrative conviction, penalty imposed, Date of appeal	Other complaints under well-established case-law
8.	39076/20 20/08/2020	**Aleksandr Petrovich DMITRIYEV** 1991 Gilmanov Mansur Idrisovich	From 8.00. p.m. on 15/07/2020 to an unspecified time on 16/07/2020. According to the applicant, he was detained for more than 20 hours.	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO. Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation against constitutional amendments, on 15/07/2020, Art. 20.2 § 6.1 of CAO, administrative detention of 10 days, Moscow City Court, 22/07/2020.	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies.
9.	43044/20 10/09/2020	**Maksim Aleksandrovich CHAKHOVSKIY** 1970 Yelanchik Oleg Aleksandrovich	From 3.20. p.m. to unspecified time in the evening on 27/07/2019	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO. Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO, and beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Butkevich*, cited above, §§ 63-65; *Tsvetkova and Others*, cited above, §§ 121-22).	Manifestation for fair elections to Mosgorduma, on 27/07/2019, Art. 20.2 § 5 of CAO, fine of RUB 10,000, Moscow City Court, 10/03/2020.	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies.
10.	46025/20 06/10/2020	**Yan Andreyevich MATVEYEV** 1990 Pomazuyev Aleksandr Yevgenyevich	From 00.30 p.m. to an unspecified time on 27/07/2019	Absence of evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO.	Manifestation for fair elections to Mosgorduma, on 27/07/2019, Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 26/06/2020.	Art. 6 (1) - lack of impartiality of the first instance tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies.